

HOUSE No. 565**The Commonwealth of Massachusetts**

PRESENTED BY:

Patricia A. Duffy and Andres X. Vargas*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the Massachusetts farm to school program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/14/2025</i>
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/14/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/16/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/29/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/30/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/30/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/5/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>2/5/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>2/12/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/12/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>2/12/2025</i>
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>2/18/2025</i>
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>2/19/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>3/4/2025</i>
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>3/4/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>3/4/2025</i>

<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>3/4/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/4/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/4/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>3/4/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>3/5/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>3/5/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/12/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/13/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>3/13/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/20/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/20/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/20/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/25/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>3/25/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>3/25/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/7/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/7/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/7/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>4/16/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/12/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>7/14/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/21/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>7/21/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>7/23/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>7/29/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>7/31/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>8/20/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>11/19/2025</i>

HOUSE No. 565

By Representatives Duffy of Holyoke and Vargas of Haverhill, a petition (accompanied by bill, House, No. 565) of Patricia A. Duffy, Andres X. Vargas and others relative to farm and school partnerships in school meals. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the Massachusetts farm to school program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 38. (a) (1) The department of elementary and secondary education shall
4 administer a Massachusetts Farm to School Program, consisting of a grant program and a local
5 food incentive, with the aim of strengthening the commonwealth's food and agriculture
6 economy, improving student health and nutrition and building food literacy amongst students.

7 The program shall build the capacity of primary and secondary schools and licensed childcare
8 programs to purchase ingredients grown, raised, caught and processed in Massachusetts and
9 other states in the New England region or the state of New York, prepare scratch-cooked meals
10 and provide food literacy education to students, including, but not limited to, curriculum on the
11 food system and the use of experiential and garden-based learning.

(2) The department shall establish an advisory committee to advise the department on the development and administration of the Farm to School Program. The council shall include a representative from each of the following groups: the department of agricultural resources, the department of early education and care, the division of marine fisheries, Massachusetts Farm to School, and the School Nutrition Association of Massachusetts, Inc., and a geographically and demographically diverse group of stakeholders appointed by the commissioner.

(3) The department shall employ a full time program coordinator for the Farm to School Program. The responsibilities of the program coordinator shall include:

(i) working with the advisory committee to instruct the department on actions and strategies for establishing and implementing the Massachusetts Farm to School program; (ii) overseeing program implementation; (iii) assessing and building the capacity of interested School Food Authorities and early education and care programs to participate in the program, which may include contracting with public and nonprofit entities to provide technical assistance to school and early education staff, farmers, food distributors and processors; and (iv) ensuring timely reimbursement to participating SFAs and early education and care programs.

(b) (1) The department shall, in consultation with the advisory committee established in subsection (a) of this section, establish a Farm to School grant program to advance the use of local foods in schools and provide food literacy education to students.

(2) To be eligible for grant funding the department shall require that applicants: (i) be a K-12 school or licensed child care program located in the commonwealth; and (ii) provide meals through the National School Lunch Program or the Child and Adult Care Feeding Program.

(3) The grant program shall provide, subject to appropriation, funding for the following local food and food literacy priorities: (i) adequate kitchen equipment used to prepare food for serving in school or early education meals and snacks including, but not limited to, local, fresh produce, meats, seafood and dairy items; (ii) training for kitchen staff in preparing fresh meals using local ingredients and in procuring such ingredients; (iii) training for educators and other school or early education staff in adding or integrating food system lessons to their curriculum; (iv) programming for curricular and extracurricular activities, such as farm field trips and school gardens, for students to learn about agriculture and the food system; and (v) infrastructure for classroom projects related to food literacy such as school gardens or indoor growing systems.

(4) There shall be established and set up on the books of the commonwealth a separate fund, to be administered by the commissioner of the department of elementary and secondary education, which shall be known as the Massachusetts Farm to School Fund. The Fund shall consist of all revenues from public and private sources as appropriations, gifts, grants, donations, reimbursements from the federal government and grants-in-aid or other receipts to further the purposes of the Fund in accordance with this section. Any unexpended funds appropriated for purposes of this section shall not lapse at the end of the fiscal year but shall be available for expenditure during the next fiscal year.

(5) The department, in consultation with the advisory committee, shall promulgate regulations or guidelines to implement the grant program established pursuant to subsection (b) of this section. The regulations or guidelines promulgated by the department shall include eligibility criteria that promotes geographic, social, economic and racial equity in distribution of grant funds. Grants shall be awarded in consultation with the advisory committee.

(c) (1) The department shall, in consultation with the advisory committee established in subsection (a), develop a Massachusetts Local Food Incentive program, to reimburse school food authorities, as defined in 7 CFR 225.2 and hereinafter referred to as SFAs, and licensed early education and care programs participating in the Child and Adult Care Feeding Program, as defined in section 1 of chapter 15D, for money spent to purchase food from local farms, fishers and producers.

(2) School districts participating in the federal National School Lunch Program and licensed early education and care programs participating in the federal Child and Adult Care Feeding Program shall be eligible for participation and reimbursement through the program. Participants in the program shall be reimbursed 1 dollar for every 2 dollars of purchases of products grown, raised or caught in Massachusetts. Participants in the program shall be reimbursed 1 dollar for every 3 dollars of purchases from regional vendors where such product originates within other states in the New England region or the state of New York. Food purchases eligible for reimbursement shall include direct purchases from farms and farmer cooperatives, fishers and fishing cooperatives, food hubs and wholesale distributors. The department shall confirm the place of origin for the products through self-attestation from the originating producer or any other user-friendly means required by the department.

(3) The department, in consultation with the advisory committee, shall promulgate rules relative to the specifications and qualifications for eligible foods for the program including, but not limited to, value-added dairy, unprocessed and lightly processed seafood, pork, beef, poultry, eggs, fruits, vegetables, grains, honey and maple syrup. The department shall encourage purchases of products originating from socially disadvantaged farmers or producers or from small farm or seafood businesses, as documented to participating SFAs or early education and

care programs. All food items purchased through the program shall comply with federal Child Nutrition Program guidelines. When developing the rules, the department, in consultation with the advisory committee, shall consider any necessary differences in program administration to ensure equitable participation by early education programs.

(4) The department shall, in consultation with the advisory committee, promulgate regulations to implement the program, which shall include eligibility criteria, promotional and outreach campaigns, identification of product eligibility, sourcing information and guidelines for reimbursement and reporting requirements. The department shall annually determine the maximum funding award per district or early education program based on the annual appropriation level and any available federal funding. The department shall maximize federal financial participation for state expenditures made on behalf of program enrollees and work to ensure any available federal funds are incorporated into existing programs for eligible SFAs and early education programs. The regulations or guidelines promulgated by the department shall promote geographic, social, economic and racial equity in program impact and in distribution of state funds.

(d) The department shall, in consultation with the advisory committee, annually on or before January 31, submit a report of the Massachusetts Farm to School program's activities and impact to the clerks of the house and the senate, the house and senate committees on ways and means, the joint committee on education and the joint committee on agriculture. To write this report, the department shall, in consultation with the advisory committee, develop a survey on the grant program and the local food incentive to be distributed annually to participating school districts and early education programs in order to collect data to document the impacts of the program and any challenges, including additional staffing or training needs. The annual report

101 shall describe the program's impacts including, but not limited to: (i) testimonials from students,
102 teachers and staff at participating schools and early education programs and participating
103 producers and food businesses; (ii) the number of impacted students in participating schools and
104 early education programs; (iii) the number of new or expanded school gardens; (iv) the value of
105 food purchased through the incentive program, including a breakdown of the number, business
106 type and geographic location of participating farms, producers and food businesses; and (v)
107 analysis of the current unmet need for the program and what financial and other resources are
108 needed to meet said needs.

109 SECTION 2. The department of elementary and secondary education shall promulgate
110 regulations pursuant to the program set forth in section 1 within 180 days of the effective date of
111 this act.